

Andhra Pradesh Prohibition of Child Marriages Rules, 2012

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State of Andhra Pradesh - Act

Andhra Pradesh Prohibition of Child Marriages Rules, 2012

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Andhra Pradesh Prohibition of Child Marriages Rules, 2012

Rule ANDHRA-PRADESH-PROHIBITION-OF-CHILD-MARRIAGES-RULES-2012 of 2012

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Andhra Pradesh Prohibition of Child Marriages Rules, 2012

Published vide Notification No. G.O. Ms. No. 13, Department for Women, Children, Disabled & Senior Citizens (WP), dated 19.03.2012

Last Updated 10th September, 2019

No. G.O. Ms. No. 13. - In exercise of the powers conferred by subsection (1) of Section 19 of the Prohibition of Child Marriages Act, 2006 (Central Act No.6 of 2007), the Governor of Andhra Pradesh hereby makes the following rules.

1.

Short title, Extent and Application.

(1)

These Rules may be called "the Andhra Pradesh Prohibition of Child Marriages Rules, 2012".

(2)

It extends to the whole State of Andhra Pradesh.

(3)

These Rules shall be applicable to all Indian citizens, and foreigners residing in/visiting Andhra Pradesh, including their families, enforcement agencies and the Government.

2.

Definitions.

- In these rules, unless the context otherwise requires:-

(i)

"Act" means "The Prohibition of Child Marriages Act, 2006";

(ii)

"Child" means a person who, if a male has not completed twenty-one years of age; and if a female, has not completed eighteen years of age;

(iii)

"Child Marriage" means a marriage to which either of the contracting parties is a child;

(iv)

"Contracting party" in relation to a marriage, means either of the parties whose marriage is or is about to be thereby solemnized;

(v)

"District Court" shall in addition to those mentioned in the Act includes the Court of the Judicial First Class Magistrate, and all other Children's Courts in Andhra Pradesh that shall be constituted under the Commission for Protection of Child Rights Act, 2005;

(vi)

"Marriage Officer" means an Officer duly appointed by the State Government under the Andhra Pradesh Compulsory Registration of Marriages Act, 2002;

(vii)

"Nodal Officer" means the Commissioner / Director of Women Development and Child Welfare at State Level and the Collector of the District at District Level or as may be notified by the Government;

(viii)

"Section" means a Section of the Act; and

(ix)

"Rules means" The Andhra Pradesh Prohibition of Child Marriages Rules, 2012".

Words and expressions used and not defined in these rules but defined in the Act shall have the means respectively assigned to them in the Act.

3.

"Appointment of Child Marriage Prohibition Officers".

- The State Govt, appoint the following Officers as the "Child Marriage Prohibition Officers" (herein after referred to as the CMPO) for the whole State of Andhra Pradesh from the date of notification in the official Gazette/District Gazette:-

(1)

The District Collector of the concerned District is District CMPO.

(2)

Revenue Divisional Officer (RDO)/Sub-Collector at the divisional level.

(3)

The Child Development Project Officers (CDPOs) at the Project level covering 3-5 mandals which is under their jurisdiction.

(4)

The Tahsildars at the Mandal level for the villages which are under their jurisdiction.

(5)

The ICDS Supervisors at the Mandal level covering their respective villages under their jurisdiction.

(6)

The Panchayat Secretaries of the Panchayat Raj Department and Village Administrative Officers of Revenue Department at the Village level.

4.

"Duties of the Child Marriage Prohibition Officers".

- In addition to the duties enlisted in the Act, all the "Child Marriage Prohibition Officers" at all levels, shall be duty bound to:

(1)

Ensure implementation of the Andhra Pradesh Compulsory Registration of Marriages Act, 2002 and Rules made under the said Act vide G.O.Ms.No.35, WD, CW & DW (Progs) Department dated 24th September, 2003.

(2)

Immediately act upon any information of the solemnization or proposed solemnization of any child marriage that may be received through any mode of communication, including in written or oral form i.e., through a letter, telegram, phone, e-mail, etc, or by any other means maintaining the confidentiality of the informant or source of information or suo motu on any instance coming into his/her knowledge or reported in media and forthwith initiate all necessary action, including addressing the Police and Officers concerned.

(3)

Furnish Returns and Statistics in formats as may be prescribed by the Government from time to time.

(4)

Cause the publication and wide circulation of the Act and the Rules in Telugu and Urdu in all offices under this Act and public places and in all villages etc.

(5)

Associate and Work in Co-ordination with the respective Village / Mandal / Divisional / District Child Marriage Prohibition and Monitoring Committee, NGOs, SHGs, VDP, Mandal Samakhya, Zilla Samakhya and departments concerned.

(6)

Initiate legal action and cause registration of cases under appropriate provisions of the Act, and Rules for their violation.

(7)

Formulate concrete strategies for the identification, rescue, rehabilitation and reintegration of Victims of child marriages.

(8)

Activate the Balika Mandals and Peer Groups to sensitise other adolescent girls.

(9)

Take all such measures as required to sensitise and promote awareness against child marriages and to prevent child marriage.

5.

"Powers of the Child Marriage Prohibition Officers".

- Under the Act, "Child Marriage Prohibition Officers" are vested with the powers of a police officer and shall exercise the powers of investigation, summoning of parties and witness, recording of statements, booking of cases against individuals and parties concerned. The said Reports shall be treated as material evidence for punishing the offenders legally.

The "Child Marriage Prohibition Officers" shall also have the power to seek the assistance of the police and the police shall be duty bound to provide such assistance to the "Child Marriage Prohibition Officers" to enable her/him to carry out his/her duties under the Act and the Rules.

6.

Disciplinary Action against Child Marriage Prohibition Officers.

- Every Child Marriage Prohibition Officers shall be responsible for taking pro-active steps to prevent Child Marriages including furnishing of timely information of any such marriages or proposed marriages to Police and Superior Officers concerned. Any failure in this regard shall entail appropriate action against concerned.

7.

Designation of Nodal Officer.

- (i) The Commissioner / Director of Women Development & Child Welfare at State Level and the District Collector at the District Level and RDO's/ Sub Collectors at the divisional level shall be the Nodal Officers respectively for the purpose of implementation of the Act and the Rules.

(ii)

The Commissioner / Director of Women Development & Child Welfare at State Level and the District Collector at the

District Level and RDO's/Sub Collectors shall periodically review the functioning of the "Child Marriage Prohibition Officers" which shall not be less than once in six months within her/his respective State/District/Division and take all necessary measures for the proper and effective implementation of the Act and the Rules.

8.

Village Child Marriage Prohibition and Monitoring Committees.

- A committee shall be constituted in every village to monitor and supervise the implementation of the Act and the Rules within that village. The Committee shall comprise of the following persons:

1. Gram Panchayat Sarpanch

-

Chairperson

2. The Panchayat Secretary

-

Member

3. Village Administrative Officers of Revenue

Dept.

-

Member

4. Local School Teacher

-

Member

5. Members of self help group/Gram Samakhya

-

Members

6. Elected Panchayat Women Members

-

Members

7. ANM

-

Member

8. NGO functioning in the area

-

Member

9. A member from Youth Organization Preferably a women

-

Member

10. Village Officers

-

Members

11. ASHA

-

Members

12. Anganwadi Worker

-

Convener

9.

Mass Solemnization of Child Marriages.

- The CMPO's and officials concerned shall, during the mass solemnizations of child marriages, on occasions such as Akshya Trutiya, Mahashivaratri, Birappa Pandaga, Samakka Sarakka Jatara, Sravana and Maga (Kalyanamastu Programme) etc. take all necessary steps to prevent Child Marriages including the following:-

(1)

The District Collector shall involve all the related departments; especially of the Endowments/Departments, i.e Head of Festival Committees or the Executive Officer of the temple where the mass marriages are being held; Health, Education, Rural Development, Panchayati Raj, Women Development and Child Welfare, Police, Information & Public Relation, Adult Education, Revenue etc., among others, for better co-ordination to ensure that no child marriages, including mass child marriages are solemnized.

(2)

The District Administration should begin planning and strategizing well before such occasions with constant awareness drives etc., against child marriages including mass child marriages.

(3)

The Officials shall ensure scrupulous adherence to the Andhra Pradesh Compulsory Registration of Marriages Act, 2002.

(4)

The Nodal Officers at State Level and District Level with the help of Village Level Child Marriage Prohibition Committee and CMPOs etc., at various levels should among others take the following measures: -

(i)

Give wide publicity about the negative consequences of child marriages in the local language and use creative and mass media through films, hoardings, posters, pamphlets, loudspeakers, cultural programmes etc, and advertisement on the TV, radio and newspapers and on buses and trains etc.

(ii)

Take a serious note of any form or means of glorification of child marriages and initiate appropriate measures, including legal action, against child marriages and must initiate appropriate measures, including legal action, against such person/organizations responsible for such glorification.

(iii)

Ensure that officials and Professionals like doctors etc. on no account issue false medical/birth/age certificates and initiate appropriate action when they are found doing so.

(iv)

Necessarily involve NGOs having a track record of working on issues related to children, in particular against child marriages.

10.

Budget.

- The Nodal Officers and Child Marriage Prohibition Officers at various level shall be provided adequate funds to implement and monitor the implementation of the Act and Rules.

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